

**El Paso County
Delia Briones
County Clerk**

Instrument Number: 00000000075

ma.mendez

Recorded On: 5/8/2026 8:35:15 AM

Number of Pages: 1

NF Pages: 1

*****THIS PAGE IS PART OF THE INSTRUMENT*****

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY because of color or race is invalid and unenforceable under federal law.

File Information

Document Number 00000000075

Receipt Number 1984524

Fees \$12.00



State of Texas
COUNTY OF EL PASO

I hereby certify that this instrument was FILED in the File Number sequence on the date/time printed hereon, and was duly RECORDED in the Official Record of El Paso County, Texas.

Delia Briones
County Clerk
El Paso County, TX

A handwritten signature in cursive script that reads "Delia Briones".

Notice of Substitute Trustee's Sale

Date: May 7, 2026

Substitute Trustee: Michael Hutson

Borrower: Victor I. Mendez and Jaime R. Chavez

Lender: First Savings Bank

Note: Promissory Note, dated February 25, 2005, in the original principal amount of \$390,000.00

Deed of Trust

Date: February 25, 2005

Grantor: Victor I. Mendez and Jaime R. Chavez

Beneficiary: First Savings Bank

Recording information: Recorded March 1, 2005, under Clerk's File No. 20050017377, in the Real Property Records of El Paso County, Texas

Property: Tracts 8E8A and 8E8B, Block 2, ASCARATE GRANT, in the City of El Paso, El Paso County, Texas, according to the resurvey of said ASCARATE GRANT made by El Paso County, Texas, for tax purposes, and being more particularly described by metes and bounds in Exhibit "A", attached hereto and made a part hereof (the "Property")

County: El Paso County, Texas

Substitute Trustee's Name: Michael Hutson

Substitute Trustee's Address: 5809 Acacia Circle, El Paso, Texas 79912

Date of Sale: June 2, 2026

Time of Sale: Between the hours of 1:00 p.m. and 4:00 p.m.

Place of Sale: Inside the El Paso County Coliseum located at 4100 E. Paisano Drive, El Paso, Texas 79905, or as otherwise designated by the County Commissioners of El Paso County, Texas

Default has occurred in the payment of the Note and in the performance of the obligations under the Deed of Trust that secures the Note. Because of this default, Lender, the owner and holder of the Note and the Deed of Trust lien under Texas Property Code Section 51.002, has requested that Substitute Trustee sell the Property according to the terms of the Deed of Trust and applicable law.

Therefore, notice is given that on the Date of Sale, at the Time of Sale, and at the Place of Sale, I, as Substitute Trustee, or any other substitute trustee Lender may appoint, will sell the Property by public sale to the highest bidder for cash or acceptable certified funds, according to the Deed of Trust and applicable law. The sale and conveyance of the Property will be subject to all matters of record applicable to the Property that are superior to the Deed of Trust and to any permitted exceptions to title described in the Deed of Trust. Substitute Trustee has not made and will not make any covenants, representations, or warranties about the Property other than providing the successful bidder at the sale with a deed to the Property containing any warranties of title required by the Deed of Trust. The Property will be sold **AS IS, WHERE IS, AND WITH ALL FAULTS.**

Michael Hutson is Substitute Trustee pursuant to the terms of the Deed of Trust and that certain Appointment of Substitute Trustee, recorded in connection therewith. Lender has instructed Substitute Trustee to offer the Property for sale toward the satisfaction of the indebtedness evidenced by the Note.

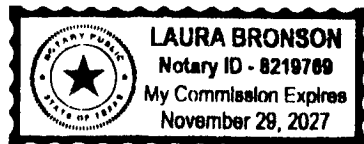
Notice is given that on the Date of Sale, the Substitute Trustee will offer the Property for sale at public auction at the Place of Sale, to the highest bidder for cash. The earliest time the sale will occur is 1:00 p.m. and the sale will be conducted no later than three (3) hours thereafter.

ASSERT AND PROTECT YOUR RIGHTS AS A MEMBER OF THE ARMED FORCES OF THE UNITED STATES. IF YOU ARE OR YOUR SPOUSE IS SERVING ON ACTIVE MILITARY DUTY, INCLUDING ACTIVE MILITARY DUTY AS A MEMBER OF THE TEXAS NATIONAL GUARD OR THE NATIONAL GUARD OF ANOTHER STATE OR AS A MEMBER OF A RESERVE COMPONENT OF THE ARMED FORCES OF THE UNITED STATES, PLEASE SEND WRITTEN NOTICE OF THE ACTIVE DUTY MILITARY SERVICE TO THE SENDER OF THIS NOTICE IMMEDIATELY AT THE TRUSTEE'S ADDRESS PROVIDED HEREIN.


Michael Hutson, Substitute Trustee

STATE OF TEXAS)
)
COUNTY OF EL PASO)

This instrument was acknowledged before me on the 7th day of May, 2026, by Michael Hutson, Substitute Trustee.




NOTARY PUBLIC SIGNATURE

AFTER RECORDING RETURN TO:
Ainsa White & Hutson, LLP
Attn: Michael Hutson
5809 Acacia Circle
El Paso, Texas 79912

EXHIBIT "A"

PROPERTY DESCRIPTION

Being the description of 2.371 acres of ground known as Tracts 8E8A and 8E8B, Block 2, Ascarate Grant, City of El Paso, El Paso County, Texas and being more particularly described by metes and bounds as follows:

Beginning at an iron rod found at the intersection of the south line of Ybarra Court (60 feet wide) and the east line of Frederick Road (60 feet wide); said rod also being the northwest corner of Tract 8E8A, Block 2, Ascarate Grant, City of El Paso, El Paso County, Texas;

THENCE South $89^{\circ} 58'$ East a distance of 208.71 feet along the south line of Ybarra Court and the north line of said Tract 8E8A to a point;

THENCE South a distance of 495.00 feet along the east line of said Tracts 8E8A and 8E8B to a point;

THENCE North $89^{\circ} 58'$ West a distance of 208.71 feet along the south line of said Tract 8E8B to a point on the east line of Frederick Road;

THENCE North a distance of 495.00 feet along the east line of Frederick Road and the west line of said Tracts 8E8A and 8E8B to the point of beginning.